

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUPA037802: ASHLEY BECKER-WHIPPLE vs TITOUAN AXEL KYLIAN
MAGRET**

06/24/2026 in Department 21

**Motion TO COMPEL BINDING ARBITRATION PURSUANT TO UNINSURED
MOTORIST LAW**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Petition to Compel Binding Arbitration Pursuant to Uninsured Motorist Law (*Unopposed*)

Tentative Ruling: Plaintiff’s Petition to compel uninsured/underinsured motorist binding arbitration is CONTINUED. Plaintiff has not complied with the declaration requirements of California Rules of Court, Rule 3.1330, which dictates that that a Petition to Compel Arbitration pursuant to CCP § 1281.2 and 1281.4 must state the provisions of the written agreement with the insurance carrier “verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.” (California Rules of Court, Rule 3.1330.) Plaintiff has also not complied with the declaration requirements of California Insurance Code § 11580.2(f). The motion is CONTINUED to 7/24/26. Counsel for Plaintiff is to file and serve an amended petition and declaration curing these defects by no later than 7/10/26.

Counsel for Plaintiff to give notice within two (2) court days.

Discussion:

Under California law, a party moving to compel arbitration of an uninsured/underinsure motorist (UM/UIM) claim is strictly required to either attach a copy of the written arbitration agreement to the petition or quote its provisions verbatim. The moving party cannot rely solely on the statutory provisions of Cal Ins Code § 11580.2. to establish the agreement.

California Rules of Court, Rule 3.1330 mandates that a petition to compel arbitration must state the provisions of the written agreement and the specific paragraph that provides for arbitration.

**2025CUPA037802: ASHLEY BECKER-WHIPPLE vs TITOUAN AXEL KYLIAN
MAGRET**

The rule explicitly dictates that these provisions "must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference." (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal. App. 4th 1047, 1058.)

In addition to satisfying the requirements of Rule 3.1330, a petition to compel arbitration specifically involving a UM/UIM claim must comply with the unique statutory requirements of Cal Ins Code § 11580.2. Any demand or petition for UM/UIM arbitration must contain a declaration, signed under penalty of perjury, stating:

1. Whether the insured has a workers' compensation claim;
2. Whether the workers' compensation claim has proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim; and
3. If the workers' compensation claim has not been resolved, what reasons amounting to good cause are grounds for the arbitration to proceed immediately.

(Cal Ins Code § 11580.2(f).)

Here, Plaintiff has not provided any actual evidence of the existence of an agreement to arbitrate in their contract with USAA, nor what the precise terms of the purported agreement would be. Nowhere in Plaintiff's petition or counsel's declaration are stated *verbatim* the terms of that agreement, nor is a copy of the written agreement attached among any of the six (6) attached exhibits.

Exhibit 6 is a single-page copy of the policy Renewal declaration. This document is neither a copy of the agreement, nor does it even include any information regarding the existence of any arbitration agreement in Plaintiff's policy with USAA. This is procedurally deficient under California Rules of Court, Rule 3.1330.

Additionally, Petitioner has not filed a declaration complying with California Insurance Code § 11580.2(f), as noted above. For these reasons, Plaintiff's petition to compel binding arbitration will be CONTINUED to allow Plaintiff counsel to serve and file an amended petition and declaration curing these defects.